

sedition or subversive activities, is scarcely worth a second thought. As the Bill of Rights provides that "excessive bail shall not be required," this sweeping measure would probably be unconstitutional, in addition to being unnecessarily harsh. In counteracting the Communists' shenanigans we must not lose our sense of proportion.

Bail For Communists

Judge Ryan in New York and Judge Holtzoff in Washington have ample reason, in our opinion, for outlawing the so-called Civil Rights Congress as a bondsman in their courts. This organization put up bond for Gerhart Eisler, and he escaped to Eastern Germany. It secured the release of the top-level Communist leaders convicted under the Smith Act, and four of them jumped bail. When Judge Ryan began probing into the disappearance of this foursome, trustees of the fund hindered the search by refusing to name the contributors who had put up the money. In these circumstances there was no reasonable alternative to the judge's conclusion that the Civil Rights Congress Bail Fund, which has long been on the Attorney General's subversive list, is "unworthy of trust."

Attorneys for accused Communists making use of the fund contend that the court should not be concerned with where the money came from. If the fund offers negotiable securities or cash for the release of a prisoner, they say, the courts are under obligation to accept it. But this ignores the purpose of bail—to insure the presence of the defendant whenever the court summons him. The constitutional right of bail does not mean that a man may buy his way out of prison or that a subversive group may put up money to insure the escape of a prisoner whose freedom is deemed valuable to it. The available evidence strongly suggests that the CRC bail fund has been used not to promote justice but to thwart it. That is ample reason for not accepting it as bondsman in the future.

Representative Walter has introduced a bill that would definitely forbid any group on the Attorney General's subversive list from acting as bondsman in the Federal courts. While experience appears to justify such a policy, we think the matter can be safely left to the courts. With judges exercising their discretion to eliminate unreliable bondsmen, Congress need not divert its attention from major legislation to this relatively minor issue. The other bail bill thrown into the hopper recently, Representative Hall's proposal to prohibit bail for anyone convicted of treason, espionage,